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Education for Homeless Children and Youths: Data and Issues

November 6, 2023

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SUMMARY

R47830

November 6, 2023

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Education for Homeless Children and Youths: Data and Issues

The McKinney-Vento Act's Education for Homeless Children and Youths (EHCY) program is the primary U.S. Department of Education (ED) program focused specifically on children and youths who are homeless. EHCY makes grants to states to help ensure that homeless children and youths have equal access to the same free appropriate education as other children and youths. The program was originally authorized under Title VII, Part B of the McKinney-Vento Homeless Assistance Act (McKinney-Vento Act; P.L. 100-77, as amended), and it was last reauthorized as part of the Every Student Succeeds Act of 2015 (ESSA, P.L. 114-95), which was signed into law in December 2015. EHCY defines *homeless children and youths* as individuals who lack a fixed, regular, and adequate nighttime residence and includes not only those living in emergency or transitional shelters but also those living in shared housing because of a financial emergency or natural disaster, among many other potential living situations. This is a broader definition of *homelessness* than is used in programs administered by other federal agencies, such as those operated by the Department of Housing and Urban Development (HUD), which may focus only on individuals living unsheltered or in shelters.

EHCY provides supports to help ensure uninterrupted access to education in the same school a student attended prior to experiencing homelessness, known as the school of origin. Each state submits a plan indicating how homeless children and youths will be identified; how assurances will be put in place that homeless children will participate in federal, state, and local food programs if eligible; and how the state will address problems such as transportation, immunization, residency requirements, and the lack of birth certificates or school records. EHCY does not provide housing.

Local education agencies (LEAs) use EHCY funds to facilitate the enrollment, attendance, and success in school of homeless children and youths. Authorized activities include transportation and other activities associated with ensuring homeless children and youths can continue to attend their school of origin. EHCY funds may also support preschool education provided to other children and youths who are not homeless. Additional authorized uses include but are not limited to tutoring; referral services for medical, dental, mental, and other health services; and professional development for educators and other staff to learn how to identify and better meet the needs of homeless children and youths.

Not every LEA applies for and receives EHCY funding, and nonrecipients must still meet McKinney-Vento requirements. States decide on the amount and number of subgrants based on a number of factors, including whether enrolled homeless students are spread evenly across a state or concentrated in urban areas. States must provide not less than 75% of the funds received through competitive subgrants to LEAs except for those states funded at the minimum level, which must distribute not less than 50%. In school year (SY) 2021-2022, 21% of LEAs nationwide received EHCY funding.

The number of homeless children and youths enrolled in preschool through grade 12 peaked at 1.5 million in SY2017-2018, before declining to 1.2 million in SY2021-2022. When comparing SY2017-2018 to post-pandemic SY2021-2022, overall numbers have declined among all reported subgroups. However, students with disabilities and English learners (ELs) remain disproportionately represented among homeless students. In SY2021-2022, ELs were represented at nearly double the rate among homeless students compared to their overall public school enrollment.

While there is no standard procedure for the identification of students, the National Center for Homeless Education (NCHE) provides toolkits and other resources to identify eligible students throughout the year and report annual numbers to the Department of Education (ED). In contrast, HUD produces an annual report on homelessness to Congress using Point-in-Time (PIT) counts, which are conducted nationwide and occur during the last week of January each year. The number of unaccompanied youths experiencing homelessness increases more than threefold when comparing the EHCY counts to the PIT counts.

Regular annual appropriations for EHCY have more than doubled since 2006. Supplemental increases in 2009 and 2021 in response to the Great Recession and the COVID-19 pandemic, respectively, provided additional resources. Although funding to states relies on the formula from Title I-A of the Elementary and Secondary Education Act (ESEA) instead of homelessness counts, state-level allocations are strongly and positively correlated with the number of enrolled homeless students.

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Introduction

The Education for Homeless Children and Youths (EHCY) program aims to ensure that all homeless children and youths have equal access to the same free, appropriate public education provided to other children and youths, including public preschool. For students without a stable living situation, the program provides funds to support access to education in the same school a student attended prior to experiencing homelessness, known as the school of origin. EHCY provides formula grants to state educational agencies (SEAs), which in turn provide competitive subgrants to local educational agencies (LEAs). EHCY was originally authorized under Title VII, Part B, of the McKinney-Vento Homeless Assistance Act (McKinney-Vento Act; P.L. 100-77, as amended). It was last reauthorized as part of the Every Student Succeeds Act of 2015 (ESSA, P.L. 114-95), which was signed into law in December 2015 and authorized appropriations through FY2020.[1]

While the definition of *homeless* varies across federal agencies,[2] the U.S. Department of Education's (ED's) definition includes children and youths who may be living in a variety of temporary living conditions. This is broader than definitions under other federal programs that may only count those living unsheltered or in shelters. EHCY relies on local liaisons to identify homeless children and youths at different points during the school year.

This report begins with a description of the structure and purpose of EHCY, followed by SEA and LEAs requirements and allowable activities. After providing data on homeless children and youths, the report discusses the challenges inherent in identifying these students, whose living situations are by definition in flux. The report concludes with a discussion of appropriations and whether state-level allocations correlate with the number of enrolled homeless students.

Structure and Purpose

The purpose of Title VII, Part B of the McKinney-Vento Act is to ensure that students who experience homelessness have access to the education and other services they need to succeed academically.[3] The act defines *homeless children and youths* as "individuals who lack a fixed, regular, and adequate nighttime residence"[4] and includes

> children and youths who are sharing the housing of other persons due to loss of housing, economic hardship, or a similar reason; are living in motels, hotels, trailer parks, or camping grounds due to the lack of alternative adequate accommodations; are living in emergency or transitional shelters; or are abandoned in hospitals;
>
> children and youths who have a primary nighttime residence that is a public or private place not designed for or ordinarily used as a regular sleeping accommodation for human beings;
>
> children and youths who are living in cars, parks, public spaces, abandoned buildings, substandard housing, bus or train stations, or similar settings; and

[1] For more information on ESSA, see CRS Report R44297, *Reauthorization of the Elementary and Secondary Education Act: Highlights of the Every Student Succeeds Act*.

[2] For more information on other homelessness programs, see CRS Report RL30442, *Homelessness: Targeted Federal Programs*.

[3] McKinney-Vento Act, §721.

[4] McKinney-Vento Act, §102(a)(1).

> migratory children (as such term is defined in section 1309 of the Elementary and Secondary Education Act of 1965) who qualify as homeless.[5]

ED distributes funding to SEAs, which then determine which LEAs[6] to fund. Not all LEAs apply for or receive funding. LEAs, regardless of whether they receive EHCY funding, are required to appoint a homeless education liaison who is responsible for identifying students who are eligible for services.

State Education Agency Requirements

Each state[7] "shall ensure that each child of a homeless individual and each homeless youth has equal access to the same free, appropriate public education, including a public preschool education, as provided to other children and youths."[8] As part of their consolidated five-year plans for all covered Elementary and Secondary Education Act (ESEA) programs[9], of which EHCY is one, states submit information to ED that includes

- a description of how homeless children and youths have the opportunity to meet the same challenging state academic standards that all students are expected to meet;
- procedures to identify homeless children and youths and to assess their needs;
- procedures for the prompt resolution of disputes regarding educational placement;
- programs for school personnel to heighten the awareness of the specific needs of homeless children and youths;
- procedures that ensure that eligible homeless children and youths participate in federal, state, or local nutrition programs;
- procedures that ensure access to public preschool programs;
- procedures that remove barriers that prevent students from receiving appropriate credit for full or partial coursework completed while attending a prior school, and from accessing academic and extracurricular activities;
- strategies to collect data to meet reporting requirements;
- strategies to address other problems with respect to the education of homeless children and youths, including problems resulting from enrollment delays that are caused by
    - immunization and other required health records;

[5] McKinney-Vento Act, §725(2)(B)(i-iv). As defined in the Elementary and Secondary Education Act of 1965, as amended, Section 1309(2-5), *migratory* means a child or youth who made a qualifying move in the preceding 36 months as a migratory agricultural worker or a migratory fisher, or with, or to join, a parent or spouse who is a migratory agricultural worker or a migratory fisher. Migratory children may also benefit from the Migrant Education Program (MEP). For more information on MEP, see https://results.ed.gov/.

[6] An LEA is a public board of education or other public authority legally constituted within a state for either administrative control or direction of, or to perform a service function for, public elementary schools or secondary schools in a city, county, township, school district, or other political subdivision of a state, or for a combination of school districts or counties as are recognized in a state as an administrative agency for its public elementary schools or secondary schools.

[7] *State* includes the 50 states, the District of Columbia, and Puerto Rico (McKinney-Vento Act, §725(5)).

[8] McKinney-Vento Act, §721(1).

[9] For more information, see CRS Report R45977, *The Elementary and Secondary Education Act (ESEA), as Amended by the Every Student Succeeds Act (ESSA): A Primer*.

  - residency requirements;
  - lack of birth certificates, school records, or other documentation;
  - guardianship issues; or
  - uniform or dress code requirements;
- policies to remove barriers to the identification of homeless children and youths, including barriers to enrollment and retention due to outstanding fees or fines, or absences;
- policies and practices to ensure that homeless children and youths are not stigmatized or segregated on the basis of their status as homeless;
- assurances that LEAs will designate a liaison for homeless children and youths;
- policies and practices to ensure that transportation is provided to and from the school of origin;
- policies and practices to ensure participation by liaisons in professional development and other technical assistance activities; and
- a description of how homeless children and youths will receive assistance from counselors to advise, prepare, and improve their readiness for college.[10]

States must establish an Office of Coordinator for Education of Homeless Children and Youths (hereinafter, Office of the Coordinator; discussed in greater detail in the next section), which creates the competitive application process for LEAs or consortia of LEAs to receive subgrants.[11] LEAs must use these funds to facilitate the enrollment, attendance, and success in school of homeless children and youths.

EHCY grants are allotted to states in proportion to grants made under Title I, Part A of the Elementary and Secondary Education Act,[12] except that no state can receive less than the greater of

- $150,000,
- 0.25% of the total annual appropriation, or
- the amount received in FY2001 under this program.

Prior to making grants to states, ED must reserve 0.1% of the total appropriation for grants to the outlying areas.[13] The department must also transfer 1.0% of the total appropriation to the Department of the Interior for services to homeless children and youths provided by the Bureau of Indian Education (BIE).

States may reserve up to 25% of their EHCY funding for state activities. *Minimally funded states*, defined as states that receive an EHCY allocation in a fiscal year equal to 0.25% of total program funds for that fiscal year, may reserve up to 50% of funding for state activities.

[10] McKinney-Vento Act, §722(g).

[11] McKinney-Vento Act, §722(d)(3).

[12] For more information, see CRS Report R44461, *Allocation of Funds Under Title I-A of the Elementary and Secondary Education Act.*

[13] These are American Samoa, Guam, the Commonwealth of the Northern Mariana Islands, and the U.S. Virgin Islands.

Office of the Coordinator[14]

The state coordinator monitors LEAs and gathers and makes public information on

- the number of homeless children and youths identified;
- the nature and extent of the problems homeless children and youths have in gaining access to public PK-12 schools;
- the difficulties in identifying the special needs of and barriers to the participation and achievement of homeless children and youths;
- any progress made by the SEA and LEAs in addressing such difficulties; and
- the success of the programs in identifying homeless children and youths and allowing them to enroll in, attend, and succeed in school.

The state coordinator also

- develops and carries out the state plan;
- submits a report to the Secretary of Education containing information necessary to assess the educational needs of homeless children and youths within the state;
- coordinates activities and collaborates with educators, service providers, and community organizations, among others;
- provides technical assistance to LEAs;
- provides professional development opportunities; and
- responds to inquiries from parents and guardians of homeless children and youths.

Local Education Agency Requirements

Under the McKinney-Vento Act, every LEA, regardless of whether it receives a subgrant, must appoint a local homeless education liaison who serves as the district's lead EHCY contact.[15] LEAs are not required to fund a full-time liaison to work with homeless youths exclusively; the liaison may hold other roles and responsibilities within the district relating to multiple subgroups of students, such as homeless children and youths, foster youths, ELs, and students with disabilities. The designated liaison is responsible for ensuring that

- homeless children and youths are identified, are enrolled, and have a full and equal opportunity to succeed in school;
- homeless families, children, and youths have access to and receive educational services for which they are eligible, including services through Head Start programs, early intervention services, and other preschool programs;
- homeless families, children, and youths receive referrals to health care services, dental services, mental health and substance abuse services, housing services, and other appropriate services;
- the parents or guardians of homeless children and youths are informed of the educational and related opportunities available to their children and are provided with meaningful opportunities to participate in the education of their children;

[14] McKinney-Vento Act, §722(f).

[15] McKinney-Vento Act, §772(g)(1)(J)(ii).

- public notice of the educational rights of homeless children and youths is disseminated in locations frequented by parents or guardians of such children and youths, as well as unaccompanied youths, including schools, shelters, public libraries, and soup kitchens, in a manner and form understandable to the parents and guardians of homeless children and youths, and unaccompanied youths;
- enrollment disputes are mediated in regards to school nutrition programs;
- the parent or guardian of a homeless child or youth, and any unaccompanied youth, is fully informed of all transportation services, including transportation to the school of origin;
- school personnel receive professional development and other support; and
- unaccompanied youths are enrolled in school, have opportunities to meet the same challenging state academic standards as other children and youths, and are informed of their status as independent students.[16]

The McKinney-Vento Act requires that each LEA will, according to each child's best interest,[17] continue the student's education in the school of origin for the duration of homelessness or enroll the student in a public school that the student is eligible to attend. LEAs should not require homeless children and youths to change schools because of a change in their living situations (e.g., if a student moves to a shelter located a considerable distance from their school origin), though they may change schools if it is determined to be in their best interest.

Competitive Local Subgrants[18]

Using available funds, SEAs competitively award subgrants for terms not to exceed three years to LEAs, although funds should be distributed on an annual basis.[19] The National Center for Homeless Education (NCHE) advises SEAs to adopt a three-year cycle as opposed to annual or biannual competitions in order to reduce administrative burden.[20] These grants must be awarded based on the need of the local applicant and quality of the application.[21]

The needs, geographies, and demographics of each state determine the number and size of subgrants. Awarding small subgrants to many LEAs may be the more appropriate approach for states that have small to moderate numbers of homeless students enrolled across most LEAs, such as more rural states. However, such an approach may not be ideal for states with large populations

[16] McKinney-Vento Act, §772(g)(6)(A). Unaccompanied youth may obtain assistance from the liaison to receive verification of such status for purposes of the Free Application for Federal Student Aid (FAFSA).

[17] The National Center for Homeless Education has produced several resources to help liaisons determine whether remaining at a school of origin in a child's best interest. Considerations include parent or guardian preferences, continuity of instruction, length of commute, and social and emotional needs. For more information and further examples, see School Selection and Best Interest Determination Strategies for Educators, https://nche.ed.gov/wp-content/uploads/2023/07/SchoolSelectionBestInterest.pdf.

[18] McKinney-Vento Act, §723.

[19] McKinney-Vento Act, §723(a)(4). In the event of three-year or two-year grants, subgrantees receive one-third or one-half of their overall funding, respectively.

[20] See National Center on Homeless Education, State Coordinators' Handbook, Chapter 7: Managing McKinney-Vento LEA Subgrants, https://nche.ed.gov/state-coordinator-handbook/.

[21] McKinney-Vento Act, §723(c)(1).

of homeless students concentrated in urban areas.[22] Other states use a tiered system[23] with the number of homeless students identified determining the size of the grant.

Determining Local Application Need and Quality

In determining need, the SEA may consider the number of homeless children and youths enrolled in early childhood education and other preschool programs, elementary schools, and secondary schools, within the area served by the LEA, and must consider the needs of such children and youths and the ability of the LEA to meet such needs.[24]

In determining the quality of applications, the SEA must consider

- the applicant's needs assessment and the likelihood that the program presented in the application will meet such needs;
- the types, intensity, and coordination of services to be provided;
- the extent to which the applicant will promote meaningful involvement of parents or guardians of homeless children or youths in the education of their children;
- the extent to which homeless children and youths will be integrated into the regular education program;
- the quality of the applicant's evaluation plan;
- the extent to which services provided under this subtitle will be coordinated with other services;
- the extent to which the LEA will use the subgrant to leverage resources, including by maximizing nonsubgrant funding for the position of the local liaison and the provision of transportation;
- how the LEA will use funds to serve homeless children and youths;[25] and
- the extent to which the applicant's program meets other measures indicative of a high-quality program, such as the extent to which the LEA will provide case management or related services to unaccompanied youths.[26]

[22] Adapted by CRS from the National Center on Homeless Education, Section 1.The McKinney-Vento Subgrant Process, https://nche.ed.gov/wp-content/uploads/2018/10/i.docx.

[23] See, for example, North Carolina Department of Public Instruction, Education for Homeless Children and Youth, McKinney-Vento Subgrant Information Sessions 2023-2026SY, https://ccip.schools.nc.gov/documentlibrary/ViewDocument.aspx?DocumentKey=392145&inline=true.

[24] For a full list of possible criteria, see McKinney-Vento Act, §723(c)(2).

[25] To include providing educationally related support services to children in shelters and other locations where children may live; children in local institutions for neglected children; and, if appropriate, children in local institutions for delinquent children, and neglected or delinquent children in community day programs. Elementary and Secondary Education Act §1113(c)(3)(A).

[26] McKinney-Vento Act, §723(c)(3).

Authorized Local Activities[27]

States provide not less than 75% in subgrants to LEAs, except for those states funded at the minimum level,[28] which must distribute not less than 50%.[29] In SY2021-2022, 21% of LEAs (4,042 out of 19,027) nationwide received EHCY subgrants.[30] LEAs may use these funds for

- tutoring, supplemental instruction, and enriched educational services;
- expedited evaluations of strengths and needs, including eligibility for gifted and talented, disability, EL, Title I,[31] career and technical education,[32] and school nutrition programs;
- professional development for school personnel to heighten their understanding and sensitivity to the needs of homeless children and youths;
- referral services for medical, dental, mental, and other health services;
- assistance to defray the excess cost of transportation for students where necessary to enable students to remain in their current school;
- developmentally appropriate early childhood education programs;
- services and assistance to attract, engage, and retain homeless children and youths, particularly those not enrolled in school, in public school programs and services provided to non-homeless children and youths;
- tutoring, homework assistance, and mentoring, including before- and after-school and during the summer;
- payment of fees and other costs associated with tracking, obtaining, and transferring records necessary for school enrollment;
- education and training designed to increase the meaningful involvement of parents and guardians;
- development of coordination between schools and agencies providing services;
- specialized instructional support services, including violence prevention counseling and referrals for such services;
- activities to address particular needs that may arise from domestic violence and parental mental health or substance abuse problems;
- adaptation of space and purchase of supplies for any nonschool facilities that provide services;
- school supplies, including those to be distributed at shelters or temporary housing facilities, or other appropriate locations; and

[27] McKinney-Vento Act, §723(d).

[28] McKinney-Vento Act, §722(c)(1).

[29] McKinney-Vento Act, §722(e)(1).

[30] As calculated by CRS using Ed Data Express, https://eddataexpress.ed.gov/download/data-builder/data-download-tool?f%5B0%5D=level%3ALocal%20Education%20Agency&f%5B1%5D=program%3AMcKinney-Vento%20Act&f%5B2%5D=program%3ATitle%20I%2C%20Part%20A&f%5B3%5D=school_year%3A2021-2022.

[31] For more information on Title I programs, see CRS Report R45977, *The Elementary and Secondary Education Act (ESEA), as Amended by the Every Student Succeeds Act (ESSA): A Primer*.

[32] For more information on career and technical education programs, see CRS Report R47166, *Career and Technical Education: A Primer*.

- the provision of other extraordinary or emergency assistance needed to enable homeless children and youths to attend school and participate fully in school activities.

Data on Homeless Children and Youths[33]

To meet McKinney-Vento Act requirements, SEAs report data annually to ED on the number of homeless children and youths in the state.[34] The number of homeless children and youths enrolled in preschool through grade 12 peaked at 1.5 million in SY2017-2018, before declining to 1.2 million in SY2021-2022.[35] Data showing declining numbers of homeless children and youths during SY2019-2020 and SY2020-2021 should be treated with caution. The COVID-19 pandemic affected the ability of school personnel to identify eligible students, particularly in areas where school buildings remained closed for many months and students lacked access to reliable internet and virtual schooling.[36]

When comparing pre-pandemic SY2017-2018 to post-pandemic SY2021-2022, numbers of homeless students have declined across all subgroups, as shown in **Table 1**.

Table 1. Counts of Homeless Children and Youths, by Selected Subgroups

Subgroup	SY2017-2018	SY2018-2019	SY2019-2020	SY2020-2021	SY2021-2022	Change from SY2017-2018 to SY2021-2022
Children with disabilities	271,464	266,739	244,737	220,599	235,915	-35,549
English learners	261,384	226,724	217,067	193,559	235,702	-25,682
Migratory children	16,054	16,938	15,667	15,124	15,831	-223
Unaccompanied youths	129,370	125,729	112,822	94,363	110,664	-18,706
Total enrolled homeless	**1,507,904**	**1,379,043**	**1,280,268**	**1,087,283**	**1,205,259**	**-302,645**

Source: Prepared by CRS using data from Ed Data Express, https://eddataexpress.ed.gov/download/data-builder/data-download-tool?f%5B0%5D=program%3AMcKinney-Vento%20Act&f%5B1%5D.

Notes: Subgroups are not mutually exclusive. Homeless children and youths may be counted in more than one subgroup. The term *unaccompanied youths* includes a homeless child or youth not in the physical custody of a parent or guardian. McKinney-Vento Act, §725(6). Data for SY2019-2020 and SY2020-2021 should be treated with caution because of challenges with identifying eligible students during the COVID-19 pandemic.

[33] Much of the material in this section is adapted from the McKinney-Vento Law into Practice Brief Series: Identifying Children and Youths in Homeless Situations, *National Center for Homeless Education*, https://nche.ed.gov/wp-content/uploads/2018/10/identification.pdf.

[34] McKinney-Vento Act, §722(f)(3).

[35] National Center on Homeless Education, "National Overview," https://profiles.nche.seiservices.com/ConsolidatedStateProfile.aspx.

[36] According to the National Center on Homeless Education, National Overview, https://profiles.nche.seiservices.com/ConsolidatedStateProfile.aspx.

In SY2021-2022, 20% of identified homeless youths were children with disabilities, 20% were ELs, 9% were unaccompanied, and 1% were migratory children and youths. Children with disabilities and ELs are disproportionately represented among homeless children and youths compared to their overall public school enrollment.[37] ELs represent 20% of the homeless student population despite representing 11% of overall enrollment. Though the number of ELs who are experiencing homelessness has declined overall since SY2017-2018, the number has been climbing upward since SY2018-2019. This increase parallels increases in homelessness among migrant children and unaccompanied youths.[38]

Identifying Homeless Children and Youths

The identification of students in homeless situations is one of the core duties of a local liaison and is likely to require a significant amount of time. While there is no standard procedure for the identification of students, the NCHE provides toolkits and other resources for LEAs to better identify eligible students throughout the school year.[39]

Instead of counting all homeless children and youths during a full school year, the Department of Housing and Urban Development (HUD) produces an annual report on homelessness to Congress that uses Point-in-Time (PIT) counts, which are unduplicated one-night estimates of both sheltered and unsheltered homeless populations. PIT counts are conducted nationwide and occur during the last week in January of each year.

To understand the magnitude of differences in these methods, unaccompanied youth[40] counts can be compared in order to evaluate how a PIT count differs from a cumulative school year count. As shown in **Table 2**, the unaccompanied youth count increases by an average of 315% when using the EHCY approach.[41] This more-than-threefold increase illustrates the importance of ongoing identification of eligible students. Unaccompanied youths may transition in and out of homelessness within the same year, or they may arrive as migrants long after the beginning of the school year.

Table 2. Comparison of Unaccompanied Youth Counts, PIT Versus EHCY

Method	2018	2019	2020	2021
PIT	36,361	35,038	34,210	N/A
EHCY	125,729	112,822	94,363	110,664
% Difference	346%	322%	276%	N/A

[37] In SY2021-2022, students with disabilities represented 15% of students nationwide according to the National Center for Education Statistics, "Students with Disabilities," https://nces.ed.gov/programs/coe/indicator/cgg/students-with-disabilities#:~:text=The%20number%20of%20students%20ages%203%E2%80%9321%20receiving%20IDEA%20services,in%20school%20year%202021%E2%80%9322.&text=Taken%20as%20a%20percentage%20of,to%2015%20percent%20of%20students. In fall 2021, the most recent period for which data are available, ELs represented 11% of public school enrollment according to Ed Data Express, https://eddataexpress.ed.gov/download/data-builder/data-download-tool?f%5B0%5D=program%3ATitle%20III&f%5B1%5D=school_year%3A2021-2022&f%5B2%5D=state_name%3AUNITED%20STATES.

[38] For more information, see CRS Insight IN11638, *Increasing Numbers of Unaccompanied Children at the Southwest Border*.

[39] See National Center for Homeless Education, "Resources," https://nche.ed.gov/resources.

[40] Defined as a homeless child or youth not in the physical custody of a parent or guardian; McKinney-Vento Act, §725(6).

[41] This average represents the percentage difference of the sum of the EHCY row divided by the sum of the PIT row in **Table 2** for 2018-2020.

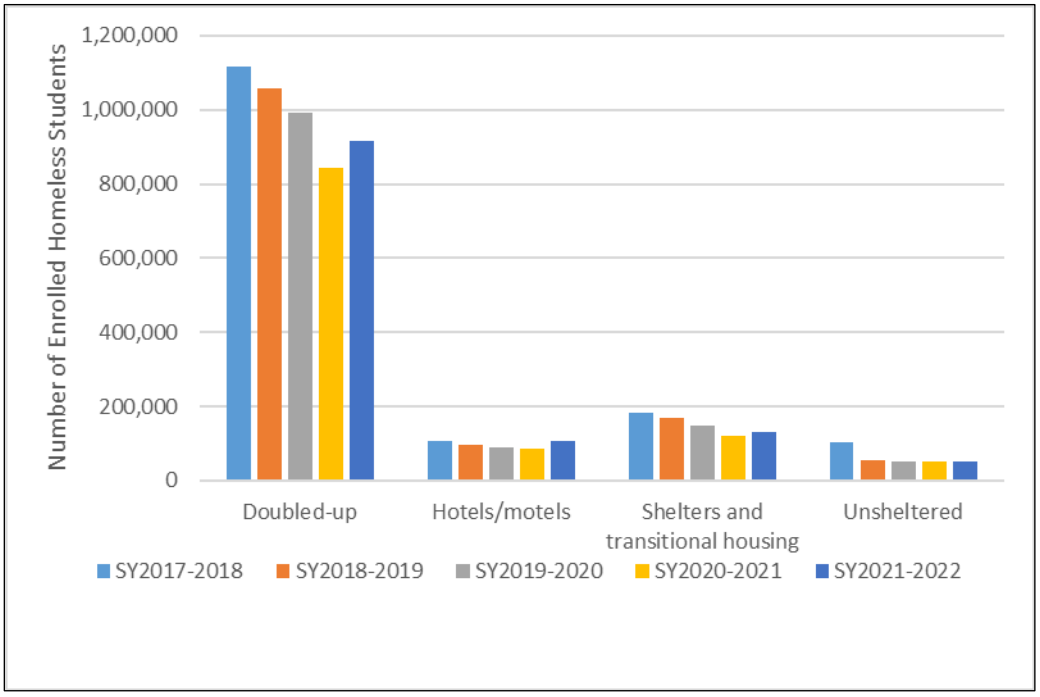
Source: PIT counts are from the U.S. Department of Housing and Urban Development, The 2022 Annual Homelessness Assessment Report (AHAR) to Congress, p. 10, https://www.huduser.gov/portal/sites/default/files/pdf/2022-AHAR-Part-1.pdf. EHCY 2018 data are from the National Center for Homeless Education, National Overview, https://profiles.nche.seiservices.com/ConsolidatedStateProfile.aspx, with remaining years from Ed Data Express, https://eddataexpress.ed.gov/download/data-builder/data-download-tool?f%5B0%5D=program%3AMcKinney-Vento%20Act&f%5B1%5D=school_year%3A2021-2022.

Notes: "PIT" refers to Point-in-Time counts, "EHCY" refers to Education for Homeless Children and Youth counts. The year columns refer to PIT counts conducted during the last week of January in that year compared to the total EHCY count for the school year beginning in that year. Data collection was disrupted for unaccompanied youths not residing in shelters in 2021.

Categories of Nighttime Residences

LEAs report data on four categories of nighttime residences. Identifying eligible children may entail confirming whether a child is unsheltered, living in a shelter or transitional housing, or living in a hotel or motel. Two of the more complex eligibility scenarios occur when children and youths are sharing housing with another family (categorized below as "doubled-up") and when they are living in substandard housing (categorized below as "unsheltered"). **Figure 1** depicts the number of students by each type of primary nighttime residence. Comparing SY2017-2018 to SY2021-2022, the number of homeless students enrolled has declined in every category except for those residing in hotels or motels.

Figure 1. Distribution of Homeless Children and Youths Enrolled by Type of Primary Nighttime Residence, SY2017-2018 through SY2021-2022



Source: Data from Ed Data Express, https://eddataexpress.ed.gov/download/data-builder/data-download-tool?f%5B0%5D=program%3AMcKinney-Vento%20Act&f%5B1%5D.

Notes: "Doubled-up" indicates children and youths living with another family. "Unsheltered" includes children and youths living in cars, parks, public spaces, abandoned buildings, substandard housing, bus or train stations, or similar settings. Data for SY2019-2020 and SY2020-2021 should be treated with caution because of challenges with identifying eligible students during the COVID-19 pandemic.

Doubled-Up Situations[42]

Doubled-up situations refers to instances when a family or youth moves in with another family member or friend because of a loss of housing. As discussed below, not all doubled-up situations qualify as homeless under the law. Doubled-up situations may be short-term or last for years; there is no time limit associated with the term. According to data from SY2020-2021, more than three-fourths of identified homeless children and youths were in doubled-up living situations (**Figure 1**).[43]

Local liaisons must determine why doubling up occurs in order to discern whether a child qualifies as homeless under EHCY. For example, a child may not be eligible if two families move in together for mutual benefit rather than in response to a crisis. Eligible crises include a loss of housing due to unpaid rent, unpaid mortgage payments, or natural disasters, among several other possibilities. Only the family who is temporarily staying in the housing should be considered homeless, with very rare exceptions. Liaisons re-evaluate students' housing situations prior to the beginning of each school year.

Substandard Housing[44]

Another potentially complex eligibility determination involves substandard housing, which does not have a definition in federal law or rule. However, liaisons may rely on state or local building codes and health and safety codes to determine whether children and youths reside in substandard housing. These situations could include homes

- without adequate heat, electricity, or water;
- with unsafe heat sources or electrical service;
- with unsafe conditions, such as holes in flooring;
- with a kitchen or plumbing that is inoperable;
- condemned by housing or other government authorities; or
- with issues beyond the structure of the building, such as overcrowding.

To assist with eligibility determinations, the National Center for Homeless Education provides several resources to support the work of state coordinators and local liaisons.[45]

[42] For more information on eligibility procedures, see the National Center on Homeless Education's Homeless Liaison Toolkit, 2020 Edition, Chapter 4: Determining Eligibility, https://nche.ed.gov/wp-content/uploads/2020/09/2020-LL-toolkit-4-Final.docx. The material in this section is drawn from Chapter 4.

[43] National Center for Homeless Education, "National Overview," https://profiles.nche.seiservices.com/ConsolidatedStateProfile.aspx.

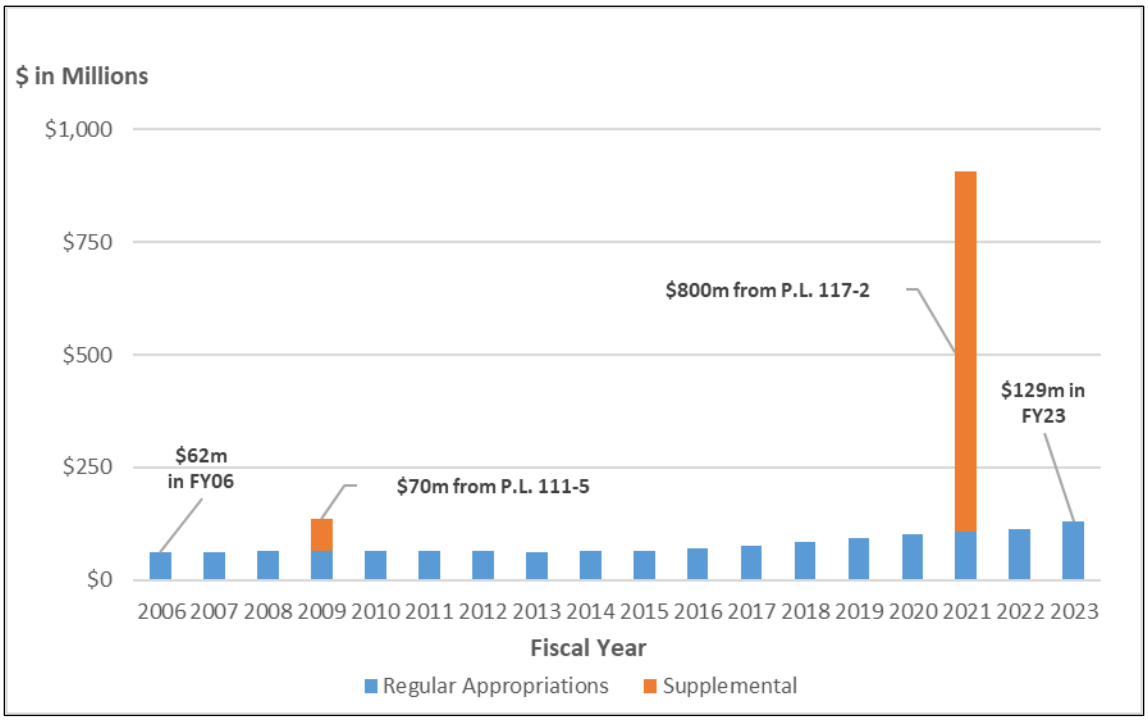
[44] Information in this section is drawn from the Homeless Liaison Toolkit, 2020 Edition, Chapter 4: Determining Eligibility, Section 4.4 Complex Conditions: Standard Housing, https://nche.ed.gov/wp-content/uploads/2020/09/2020-LL-toolkit-4-Final.docx.

[45] See National Center for Homeless Education, "Resources," https://nche.ed.gov/resources.

Appropriations

Regular annual appropriations for EHCY have more than doubled since FY2006 (**Figure 2**). The program received supplemental funding in FY2009 in response to the Great Recession and in FY2021 in response to the COVID-19 pandemic.[46]

Figure 2. Appropriations for EHCY: FY2006-FY2023



Source: Prepared by CRS. Data from FY2006 through FY2019 are provided by ED at https://www2.ed.gov/programs/homeless/funding.html. Data for FY2020 through FY2022 are found in the FY2022 DOL Congressional Budget Justification for the EHCY program, page 18, at https://www2.ed.gov/about/overview/budget/budget22/summary/22summary.pdf.

Notes: "Supplemental" refers to the one-time increases included as part of the American Recovery and Reinvestment Act of 2009 (P.L. 111-5) and the American Rescue Plan Act of 2021 (P.L. 117-2).

State-level allocations depend upon the Title I-A formula, which multiplies a formula child count, consisting primarily of estimated numbers of school-age children in poor families, by an expenditure factor based on state average per pupil expenditures for public K-12 education.[47] **Table A-1** provides EHCY allocations by state, which are strongly and positively correlated with the number of enrolled homeless students in **Table A-2**.[48]

[46] For more information on requirements related to the FY2021 supplemental increase included in P.L. 117-2, including how long SEAs and LEAs have to spend these funds, see CRS Report R47027, *Education Stabilization Fund Programs Funded by the CARES Act, CRRSAA, and ARPA: Background and Analysis*.

[47] For more information, see CRS Report R44461, *Allocation of Funds Under Title I-A of the Elementary and Secondary Education Act.*

[48] As calculated by CRS. A strong, positive correlation in this instance refers to a correlation coefficient of 0.93 when comparing the number of enrolled homeless youth reported in SY2021-2022 to the FY2021 appropriations.

Appendix.

Table A-1. Education for Homeless Children and Youths (EHCY) Funds Awarded to States, Outlying Areas, and the Bureau of Indian Education (BIE): FY2020-FY2022

State	FY2020	FY2021	ARPA Grants to Support the Specific Needs of Homeless Children and Youths (FY2021)	FY2022
Alabama	$1,636,580	$1,660,756	$13,239,031	$1,782,205
Alaska	$290,704	$300,845	$2,350,009	$323,811
Arizona	$2,091,980	$2,245,219	$16,922,395	$2,352,383
Arkansas	$1,015,036	$1,011,253	$8,213,312	$1,115,187
California	$12,204,082	$12,924,738	$98,757,695	$13,193,426
Colorado	$944,685	$1,009,125	$7,643,776	$1,082,756
Connecticut	$896,000	$983,098	$7,247,850	$967,892
Delaware	$332,869	$337,662	$2,691,098	$363,424
District of Columbia	$313,082	$312,419	$2,531,300	$391,249
Florida	$5,702,319	$5,793,338	$46,127,238	$6,545,028
Georgia	$3,441,819	$3,606,850	$27,849,370	$4,228,996
Hawaii	$334,148	$367,425	$2,701,880	$380,078
Idaho	$356,430	$359,986	$2,882,705	$383,051
Illinois	$4,095,516	$4,379,854	$33,129,062	$4,501,717
Indiana	$1,616,074	$1,532,704	$13,072,898	$1,744,039
Iowa	$627,264	$645,907	$5,075,905	$697,160
Kansas	$672,709	$695,754	$5,443,402	$750,100
Kentucky	$1,688,526	$1,565,295	$13,281,817	$1,751,030
Louisiana	$2,109,921	$2,295,161	$17,075,605	$2,258,990
Maine	$333,330	$348,220	$2,694,822	$379,022
Maryland	$1,580,787	$1,831,618	$12,787,274	$1,897,249
Massachusetts	$1,482,673	$1,625,015	$11,994,087	$1,676,113
Michigan	$3,012,610	$3,009,305	$24,378,753	$3,279,864
Minnesota	$1,069,511	$1,130,555	$8,655,053	$1,104,514
Mississippi	$1,318,266	$1,417,114	$10,664,254	$1,478,175
Missouri	$1,584,472	$1,626,877	$12,822,529	$1,690,975
Montana	$309,596	$324,786	$2,502,430	$350,349
Nebraska	$442,081	$422,733	$3,577,701	$447,263
Nevada	$868,537	$955,791	$7,025,680	$1,024,606
New Hampshire	$284,055	$277,789	$2,296,237	$314,787

State	FY2020	FY2021	ARPA Grants to Support the Specific Needs of Homeless Children and Youths (FY2021)	FY2022
New Jersey	$2,239,747	$2,253,746	$18,118,225	$2,693,280
New Mexico	$793,182	$828,506	$6,416,504	$870,876
New York	$7,282,547	$7,818,293	$58,910,436	$8,504,547
North Carolina	$2,915,982	$3,165,939	$23,588,229	$3,410,230
North Dakota	$253,750	$273,934	$1,999,979	$293,219
Ohio	$3,621,759	$3,783,577	$29,308,662	$3,936,650
Oklahoma	$1,209,971	$1,269,563	$9,788,535	$1,351,799
Oregon	$907,854	$891,548	$7,346,860	$895,694
Pennsylvania	$4,048,513	$4,501,232	$32,748,656	$4,400,659
Puerto Rico	$2,402,839	$2,686,605	$19,438,068	$3,095,767
Rhode Island	$336,224	$353,129	$2,719,153	$368,141
South Carolina	$1,711,223	$1,655,969	$13,841,864	$1,812,574
South Dakota	$309,596	$323,401	$2,502,430	$349,381
Tennessee	$2,015,328	$2,027,445	$16,303,363	$2,249,310
Texas	$10,087,967	$10,132,255	$81,388,454	$11,550,629
Utah	$498,670	$549,782	$4,033,829	$463,651
Vermont	$253,750	$266,250	$1,868,242	$285,000
Virginia	$1,708,412	$1,860,209	$13,825,002	$1,922,466
Washington	$1,500,093	$1,703,746	$12,140,633	$1,742,757
West Virginia	$616,624	$620,617	$4,990,123	$691,173
Wisconsin	$1,264,057	$1,349,312	$10,097,813	$1,357,758
Wyoming	$253,750	$266,250	$1,989,772	$285,000
American Samoa	$31,623	$33,181	N/A	$35,518
Guam	$34,264	$35,952	N/A	$38,484
Northern Mariana Islands	$19,115	$20,056	N/A	$21,469
U.S. Virgin Islands	$15,197	$17,311	N/A	$18,529
Freely Associated States	$0	$0	N/A	$0
Indian set-aside	$1,015,000	$1,065,000	N/A	$1,140,000
National Activities	$1,496,000	$1,750,000	$1,000,000	$1,750,000
Total	$101,500,500	$106,500,000	$800,000,000	$114,000,000

Source: Created by CRS using U.S. Department of Education, Office of Elementary and Secondary Education, Funding Status and Awards, https://oese.ed.gov/offices/office-of-formula-grants/school-support-and-accountability/education-for-homeless-children-and-youths-grants-for-state-and-local-activities/funding-status/; U.S. Department of Education, Budget History Tables, https://www2.ed.gov/about/overview/budget/history/index.html; and U.S.

Department of Education, Office of Elementary and Secondary Education, American Rescue Plan Elementary and Secondary School Emergency Relief – Homeless Children and Youths (ARP-HCY), https://oese.ed.gov/offices/american-rescue-plan/american-rescue-plan-elementary-secondary-school-emergency-relief-homeless-children-youth-arp-hcy/.

Notes: "ARPA" stands for the American Rescue Plan Act of 2021 (P.L. 117-2). The reservation of funds from the Elementary and Secondary School Emergency Relief Fund provided ARPA grants to states only (defined as the 50 states, the District of Columbia, and Puerto Rico). For more information, see CRS Report R47027, *Education Stabilization Fund Programs Funded by the CARES Act, CRRSAA, and ARPA: Background and Analysis*.

Table A-2. Enrolled Homeless Students by State, SY2021-2022

State	Enrolled Students
Alabama	9,050
Alaska	3,092
Arizona	18,040
Arkansas	13,718
California	225,747
Colorado	16,540
Connecticut	3,979
Delaware	3,434
District of Columbia	5,871
Florida	77,203
Georgia	35,516
Hawaii	3,251
Idaho	8,428
Illinois	48,395
Indiana	16,334
Iowa	6,517
Kansas	6,688
Kentucky	21,034
Louisiana	17,375
Maine	3,087
Maryland	16,529
Massachusetts	21,388
Michigan	28,724
Minnesota	14,587
Mississippi	5,556
Missouri	32,969
Montana	4,607
Nebraska	3,103
Nevada	16,476
New Hampshire	3,323

State	Enrolled Students
New Jersey	11,104
New Mexico	9,834
New York	133,578
North Carolina	28,631
North Dakota	2,000
Ohio	27,333
Oklahoma	21,145
Oregon	18,475
Pennsylvania	34,043
Puerto Rico	2,661
Rhode Island	1,461
South Carolina	11,543
South Dakota	1,728
Tennessee	17,512
Texas	97,279
Utah	11,897
Vermont	1,312
Virginia	16,416
Washington	37,614
West Virginia	9,154
Wisconsin	16,487
Wyoming	1,734
Bureau of Indian Education	1,757
Total	1,205,259

Source: Created by CRS using Ed Data Express, https://eddataexpress.ed.gov/download/data-builder/data-download-tool?f%5B0%5D=program%3AMcKinney-Vento%20Act&f%5B1%5D=program%3ATitle%20III&f%5B2%5D=school_year%3A2018-2019&f%5B3%5D=school_year%3A2019-2020&f%5B4%5D=school_year%3A2020-2021&f%5B5%5D=school_year%3A2021-2022&f%5B6%5D=state_name%3AUNITED%20STATES.

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